

Carter v. Officer Blake - Notice of Interlocutory Appeal

Notice of Interlocutory Appeal in Carter v. Officer Blake. Procedural posture:

District court denied qualified immunity at summary judgment after finding disputed facts about a traffic-stop seizure. Record material: The notice of appeal invokes the collateral-order doctrine. Issue: Interlocutory jurisdiction over legal questions only. Standard of review: de novo jurisdictional review. Record excerpt: Officer affidavit. The officer averred that plaintiff resisted and that any force was brief and proportionate. Nature of suit: Civil Rights - Section 1983. Lower tribunal: U.S. District Court for the Middle District of North Carolina.